

8.	Ventura v. American Honda Motor Company 23-1370487	(No tentative)
9.	Woods v. General Motors, LLC 24-1427229	Before the Court is a motion by defendant General Motors, LLC (GM) to tax the memorandum of costs filed by plaintiff Scott Henry Woods. The motion is GRANTED in part and DENIED in part, as set forth herein. The Court notes initially that while plaintiff correctly points out that the motion does not contain a separate notice of motion, the Court does not find any prejudice as a result of this procedural defect. The Court will therefore consider the merits of the motion and plaintiff's comprehensive opposition thereto. (<i>Reedy v. Bussell</i> (2007) 148 Cal. App. 4th 1272, 1289 - "In order to obtain a reversal based upon such a procedural flaw, the appellant must demonstrate not only that the notice was defective, but that he or she was prejudiced.") In a Song-Beverly action, "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (<i>Civ. Code § 1794, subd. (d).</i>) Indeed, "[i]n a claim under the Song-Beverly Act, a prevailing plaintiff is entitled to recover costs and expenses (<i>Civ. Code, § 1794, subd. (d)</i>); for purposes of that statute, expenses encompasses out-of-pocket expenses beyond the costs identified in <i>Code of Civil Procedure section 1033.5</i>." (<i>Smalley v. Subaru of America, Inc.</i> (2022) 87 Cal.App.5th 450, 457; see <i>Warren v. Kia Motors of America, Inc.</i> (2018) 30 Cal.App.5th 24, 42-43.) Here, GM does not dispute plaintiff's entitlement to costs under the Song Beverly Act but instead disputes the propriety of certain charges. Filing and Motion Fees: The \$60 filing fee for the attorney's fees motion is improper because at the time of filing the memorandum of costs, the fee had not been incurred. Therefore, Court will GRANT and tax the \$60 filing fee. Jury Fees: These are appropriate costs and therefore the motion is DENIED as to jury fees. Deposition Costs: Plaintiff states the deposition charge was for the deposition of "GM's PMQ Luis Sandoval on August 8, 2025" and a corresponding invoice is attached as Exhibit 4. (Rotman Decl. at ¶7) This is a recoverable cost and therefore the motion is DENIED as to deposition costs. Service of Process: The charges for serving a third-party witness is a recoverable cost. Therefore, the motion is DENIED as to service of process charges. Ordinary Witness and Expert Fees: Plaintiff seeks recovery of \$6,586.53 in costs charged by Anthony Micale. This charge is for

plaintiff's expert conducting a vehicle inspection. Although expert fees are not allowed as set forth in *CCP §1033.5(b)(2)*, the allowable costs under the Song Beverly act are broader. *Civil Code section 1794, subdivision (d)* permits recovery of "costs and expenses." (*Civ. Code, § 1794, subd. (d).*) "[I]t is clear the Legislature intended the word 'expenses' to cover items not included in the detailed statutory definition of 'costs.'" (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137 [disapproved on other grounds in *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189].) Per *Jensen*, the intent of the Legislature in allowing "costs and expenses" was to permit "such out-of-pocket expenses as filing fees, expert witness fees, marshall's fees, etc." (*Id.* at p. 138.)

Notwithstanding the foregoing, only costs that are reasonably incurred are recoverable. Here, there is insufficient information provided to allow the Court to determine that all of the charges were reasonable. For example, there is no information about Mr. Micale's background or why it was necessary to hire an expert from Solvang such that several thousand dollars of travel time, mileage and hotel charges would be reasonable. Based on the Court's review of the evidence submitted and the Court's familiarity with expert charges in similar cases, the Court finds \$1,975 to be reasonable and therefore **GRANTS** the motion and will tax \$4,611.53.

GM's motion to strike the \$15 witness fee paid to the Tustin dealership is **DENIED**.

Court Reporter Fees: The \$625 stated on the memorandum of costs is for Court Reporter fees associated with the Motion for Attorney Fees which had not been incurred at the time of filing the Memorandum of Costs. As the charges have not been incurred, the motion is **GRANTED** and the court will tax \$625.

Fees for Electronic Filing or Service: The electronic service fees are directly addressed within *Code of Civil Procedure section 1033.5, subdivision (a)(14)*, which states that "[f]ees for the electronic filing or service of documents through an electronic filing service provider" are recoverable "if a court requires or orders electronic filing or service of documents." However, in the opposition, plaintiff concedes that \$9.20 should be taxed. Therefore, the motion is partially **GRANTED** and the Court will tax \$9.20.

Other Costs: The Court does not find plaintiff's charges for meals, toll road chages or research to be recoverable costs. Therefore, the motion is partially **GRANTED** and the Court will tax \$87.52. However, the motion is **DENIED** as to charges for the mediation and copies of Minute Orders.

In summary, the motion is **GRANTED**, in part, and the plaintiff's memorandum of costs is taxed in the total amount of \$5,393.25. This leaves a total allowed costs in the amount of \$6,457.50.

GM is ordered to give notice.